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Tentative Ruling

Re: ***Derrel's Mini Storage, Inc. v. Delgado et al.***
Superior Court Case No. 24CECG01556

Hearing Date: June 3, 2026 (Dept. 502)

Motion: Application for Default Judgment

Tentative Ruling:

To take off calendar, as no moving papers were timely filed. Further, the filings do not include the mandatory CIV-100 forms.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: **KCK** on **06/02/26** .
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Clark v. Underwood et al.**
Superior Court Case No. 24CECG03116

Hearing Date: June 3, 2026 (Dept. 502)

Motion: By Plaintiff to Withdraw

Tentative Ruling:

To deny without prejudice.

Explanation:

Motions to be relieved as counsel must state the reasons for seeking withdrawal. (Cal. Rules of Ct., rule 3.1362(c).) Approval of withdrawal is not conditioned on a finding of cause. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.) However, a lawyer violates ethical mandates if he or she abandons the client, or by withdrawing at a critical point thereby prejudicing the client's case. (*Ibid.*)

Here, counsel for plaintiff Titus Lee Clark seeks to withdraw representation. The reason stated was merely that a substitution of attorney was never executed. This bare statement makes no attempt to assuage the concern that a client is being abandoned, and by itself is grounds to deny the motion.

Unusually, defendant City of Fresno ("Defendant") filed an opposition. Defendant contends that the case is at a critical juncture. Defendant submits that the matter has been settled in or around December 2025. However, the parties have had difficulty executing a signed settlement agreement. Defendant concludes that plaintiff Titus Lee Clark will be prejudiced by not having guidance of counsel to navigate the settlement and dismissal procedures. No response by counsel was filed.

From the above, the motion is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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